

24NNCV01689 24NNCV01689

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C07%2F02%2F2026

Source SHA-256: 730ba45b83cef39330f9d4a489ae57706428b6e738514b5b11908d2cc8f7d3aa

Case Number: 24NNCV01689 Hearing Date: July 2, 2026 Dept: B

Hon.

Victor Avila, Dept B

MOTION

NAME

Hearing Date: 07/02/2026

CASE

NO./NAME: 24NNCV01689 Aragundi v. Makandura, et al.

Moving Party: Defendants

Responding Party:

Plaintiff

Notice: Sufficient

Ruling: TENTATIVE

The Court's tentative

ruling is to GRANT Plaintiff's request for a continuance pursuant to CCP § 437c(h), where Plaintiff contends that, despite diligent efforts over the past year, he has been unable to depose Defendants and asserts that such depositions are reasonably likely to disclose facts essential to oppose the motion for summary judgment, including evidence regarding Defendants' knowledge of the dogs' vicious propensities and facts bearing on the applicability of the veterinarian's rule (assumption of the risk) to a dog walker under the

circumstances presented.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon.

Victor Avila

Judge

of the Superior Court